

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: June 5, 2026

1	Nelson vs. True Home Builders, INC 2024-01448292	Motion to Strike Portions Of Complaint Defendants Coast Geotechnical, Inc. and Dan Herc's Motion to Strike Portions of the First Amended Complaint is DENIED. Moving Defendants have failed to engage in the meet and confer process prior to filing the motion. (Code Civ. Proc. § 435.5) Counsel for Moving Defendants offers no explanation for why he did not comply with the Code.
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		Moreover, the motion is untimely. Defendant Coast Geotechnical Inc. Defendant Coast Geotechnical Inc. filed an Answer to the FAC on November 10, 2025. Defendant did not file this motion to strike until February 11, 2026. A motion to strike must be filed “within the time allowed to respond to a pleading,” which is 30 days after service of the complaint unless extended by court order or stipulation. (Code Civ. Proc. § 435(b)(1).) Here, the motion was filed three months after the FAC was served and three months after Defendant had filed an Answer to the FAC. The court in <i>City and County of San Francisco v. Strahlendorf</i> (1992) 7 Cal.App.4th 1911, rejected a motion to strike that was filed “long after respondent had filed his answer to the complaint, holding that such a motion was unavailable under the circumstances. (Id. at 1913; see also <i>Adohr Milk Farms, Inc. v. Love</i> (1967) 255 Cal.App.2d 366, 370 [holding that a defendant can move to strike complaint only before he has answered it and not afterward.].) While the court has discretion to hear a late filed motion to strike (Code Civ. Proc., § 436), it declines to exercise such discretion where, as here, the moving party failed to engage in the meet and confer process and offers no explanation why the motion was untimely filed. Defendant Herc No Answer has been filed by Defendant Herc, despite representation by the same counsel as Coast Geotechnical and service of the FAC on his counsel on November 3, 2025. However, as stated above, counsel for Herc failed to engage in the meet and confer process, and the motion is untimely. The court declines to exercise its discretion to hear the late filed motion of Defendant Herc in light of the circumstances.
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		Accordingly, Moving Defendants' motion is DENIED in its entirety. Moving Parties shall give notice.
3	Claude Parrish vs. Assessment Appeals Board No. 3 for the County of Orange 2025-01489959	Petition for Writ *****
4	Saguilan vs. Santa Ana Unified School District 2024-01442239	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted Defendant Santa Ana Unified School District's motions to compel plaintiff Concepcion M. Saguilan to respond to Form Interrogatories, set one and Request for Production of documents, set one are GRANTED. District's motion to deem matters admitted is GRANTED. Sanguilan to pay District sanctions in the total amount of \$2,125.00. The sanction request is too high. There was no opposition to the motions and therefore no opposition review or reply preparation was necessary. The total award a total of 8.5 (2.5 hours motion preparation time x3 + 1 hour total hearing time) hours @ \$250.00 per hour for a total award of \$2,125.00, payable within 30 days. Moving Party shall give notice.

6	Bitner vs. Jaguar Land Rover North America, LLC 2024-01424696	Motion to Compel Deposition (Oral or Written) Plaintiff Jennifer L. Bitner's (plaintiff) motion to compel deposition is CONTINUED to November 6, 2026 at 9:30 AM in this department. Plaintiff and defendant Jaguar Land Rover North America, LLC (defendant) are ORDERED to (1) engage in a good faith, face-to-face meet and confer effort regarding each issue raised by this motion either in person or via videoconference, within 10 court days or by no later than Monday 6/22/26; and (2) file a jointly-prepared separate statement as to any topics of examination and requests for production that remain at issue, if any, by no later than Friday 6/26/26 at 5:00 p.m. This motion concerns plaintiff's second amended deposition notice served on 3/11/26, setting the deposition of defendant's person most qualified (PMQ) on 3/30/26, and containing a whopping 66 topics of examination (some of which have subparts) and 73 demands for production. (Roldan Decl. ¶ 17, Ex. 4 [subject deposition notice].) Once defendant responded to the subject deposition notice by serving written objections (Roldan Decl. ¶ 18, Ex. 5), plaintiff was required to meet and confer, or more specifically, to make "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, subd. (a), 2025.450, subd. (b)(2).) Plaintiff never attempted to meet in confer "in person, by telephone, or by videoconference"; plaintiff only sent written correspondence. To make matters worse, defendant ignored plaintiff's written attempts to meet and confer until after plaintiff filed this motion (see Roldan Decl. ¶¶ 20-23), and when defendant finally responded to plaintiff's meet and confer attempts (less than three hours before filing its opposition to
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		this motion), it did nothing more than offer to produce its PMQ on 11/5/26, more than five months after this hearing. (See Cho Decl. ¶ 9, Ex. A [email response dated 5/22/26 at 5:17 p.m.] .) Given the extent of the examination topics and requests for production at issue, a proper meet and confer conference is in order. The parties shall engage in a good faith, face-to-face meet and confer effort and file a joint separate statement as to any remaining issues, as ordered above. To help guide the parties' court-ordered meet and confer conference, the court notes the following tentative observations: (A) This action concerns plaintiff's 2022 Land Rover Defender (subject vehicle) purchased on or about 8/7/21 (Compl. ¶ 9) or 3/10/23 (Roldan Decl. ¶ 7). Plaintiff should clarify the purchase date during the parties' meet and confer conference. (B) The defects at issue in this action are "fuel system" defects, and "sunroof, engine, electrical system, and structural defects." (Compl. ¶ 13; Roldan Decl. ¶ 9.) (C) This action concerns whether defendant failed to promptly repurchase the subject vehicle after failing to conform it to warranty after a reasonable number of repair attempts, failed to commence and/or complete repairs within 30 days or a reasonable time, failed to provide its authorized repair facilities sufficient service literature and replacement parts to effect repairs, and whether defendant's failure to comply with these obligations was willful. (See Compl. ¶¶ 14-16, 18, 21-25, 27, 29; Roldan Decl. ¶¶ 7-12.) (D) Generally, the examination topics and requests for production should be limited in scope to the relevant time period, i.e., the date plaintiff purchased the subject vehicle, to the present.
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		(E) Questions and records regarding plaintiff's vehicle specifically (i.e., the very subject vehicle at issue in this action) are relevant. (See Code Civ. Proc., § 2017.010 [relevance for purposes of discovery].) This includes, inter alia, the entire warranty transaction history for the subject vehicle. (F) Questions and records regarding defendant's review and/or investigation of plaintiff's vehicle repairs, plaintiff's complaints regarding the subject vehicle, and/or plaintiff's request(s) for a buyback are relevant. (G) Questions and records concerning the defects at issue in vehicles of the same make, model, and year as the subject vehicle are relevant, as are questions and records pertaining to defendant's knowledge of these defects and its ability to repair them. (See <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 590-591 [broad scope of discovery]; see also Civ. Code, § 1794, subd. (c) [civil penalty of up to two times the amount of actual damages for willful violations of the Act]; <i>Bowser v. Ford Motor Co.</i> (2022) 78 Cal.App.5th 587, 615-617 [relevance of evidence showing defendant's knowledge of problems/defects]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 143-144, 153 [relevance of evidence of similar problems in other vehicles]; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 973, 978-979, 986 [same].) (H) Questions and records concerning diagnostic procedures, repair procedures, recalls, technical service bulletins, field technical reports, and internal analyses and investigations regarding the defects at issue in vehicles of the same make, model, and year as the subject vehicle are relevant. (I) Questions and records relating to communications regarding the subject vehicle between defendant, defendant's authorized repair facilities, and/or plaintiff are relevant.
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		(J) Policies and procedures related to the repurchase or replacement of a vehicle under the Song-Beverly Consumer Warranty Act, which were in effect during plaintiff's ownership of the subject vehicle, are relevant. (K) The parties should schedule the deposition for a mutually agreeable date within 30 days of the court-ordered meet and confer conference. If the parties are unable to agree on a date, the court will set the deposition for a date within a week of the continued hearing on this motion. Plaintiff shall give notice of all of the above.
8	Lanagan vs. Penney OPCO LLC 2025-01516569	Demurrer to Complaint Defendant Penney OpCo, LLC's Demurrer to the Complaint is CONTINUED to September 11, 2026 at 9:30 AM. Plaintiff T.K.C Lanagan appears to have served an opposition to the demurrer on Defendant, but failed to file it with the court. Accordingly, the hearing is continued, and Plaintiff is ordered to file his opposition with the court within the next 15 days. No further briefing is allowed. Moving Party shall give notice.
9	Thomas Solar Energy vs. Orange County Sanitation District 2023-01337224	Motion to Be Relieved as Counsel of Record The motion of attorney Matt Cortez of Matt Cortez Law, PC to withdraw as attorney of record for Plaintiffs Thomas Solar Energy and Thomas Ngueyn is GRANTED only as to Plaintiff Thomas Solar Energy, effective as of

		the filing date of the proof of service of the Court's order. The motion is DENIED without prejudice as to Plaintiff Thomas Nguyen. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney failed to submit the mandatory notice form with respect to Thomas Nguyen. A notice was only filed and served with respect to Thomas Solar Energy. (See ROA 107.) Moreover, no proposed order was submitted for Thomas Nguyen. ***OSC Re: Representation of Counsel for corporate entity is set for August 21, 2026 at 9:30 AM. If no counsel appears, the Court will consider striking/dismissing the portions of the Complaint relating to Plaintiff Thomas Solar Energy. Moving attorney is ordered to give notice.
10	The Turnkey Foundation, Inc. vs. Armour Home Mortgage 2023-01323086	Motion to Deem Facts Admitted Defendant Robert A. Gillon's motion to deem matters admitted as to Request for Admissions, set two served on The Turnkey Foundation, Inc. dba Arbor Financial Group is granted in part and denied in part as follows: The court may not deem the matters admitted as Turnkey has provided verified, code compliant responses to the subject discovery. See Code Civ. Proc., § 2033.280. However, the court awards Gillon sanctions in the amount of \$1,960.00 against Turnkey, payable within 30 days. Under Ca. Civ. Pro. section 2033.280, when a party fails to respond timely to Requests for Admissions, "the requesting party may move for an order that the genuineness of any

	documents and the truth of any matters specified in the requests be deemed admitted." However, subdivision (c) of this statute provides a critical limitation: "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." The statute makes monetary sanctions mandatory against the party whose failure to serve timely responses necessitated the motion. The statutory language "shall make this order, unless" creates a mandatory directive that removes judicial discretion once substantially compliant responses are served before the hearing. Ca. Civ. Pro. Section 2033.280. In <i>Wilcox v. Birtwhistle</i>, the California Supreme Court (1999) 21 Cal.4th 973, addressed this provision, noting that the court must grant the motion to deem matters admitted unless the statutory exception applies. The court cannot exercise discretion to grant the motion when the responding party has met the statutory requirement of serving substantially compliant responses before the hearing. <i>Wilcox</i>, id. Here, the verified responses attached to the opposition as exhibit 8 appear to be in substantial compliance with the code. As such, the court may not order the matters deemed admitted. However, the court does have the obligation to impose some sanctions. Plaintiff contends there should be no sanctions awarded as Moving Party acted in bad faith and did not adequately attempt to meet and confer to resolve the issue. The evidence shows otherwise. But the requested sanction of \$4,335.00 is too high. The Court reduces the hours claimed from 9 to 4. At \$475.00 an hour that equates to \$1,900.00 + \$60 for the filing fee or a total sanction award of \$1,960.00.
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		Gillon to give notice.
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